this paragraph. (August 20, 1943) (Pub. No. 144, 78th Cong.)

ACCRUED AMOUNTS DUE AND UNPAID AT DEATH

§ 5.2660 (a) Pension, compensation, or retirement pay authorized under laws administered by the Veterans' Administration, to which a person was entitled prior to the date of his death, and not paid during his lifetime, and due and unpaid for a period not to exceed one year prior to death under existing ratings or decisions, or those based on evidence in the file at date of death, shall, upon the death of such person, be paid as hereinafter set forth:

(1) Upon the death of a person receiving an apportioned share of the veteran's pension, compensation, or retirement pay, all or any part of such unpaid amount, to the veteran or to any other dependent or dependents as may be determined by the Administrator of Veterans Affairs.

(2) Upon the death of a veteran, to the surviving spouse; or if there be no surviving spouse, to the child or children, dependent mother or father in the order named.

(3) Upon the death of a widow or remarried widow, to the veteran's child or children.

(4) Upon the death of a child, to the surviving child or children of the veteran, entitled to death compensation or pension.

(5) In all other cases, only so much of the unpaid pension, compensation, or retirement pay may be paid as may be necessary to reimburse a person who bore the expense of last sickness and burial: *Provided, however,* That no part of any of the accrued pension, compensation, or retirement pay shall be used to reimburse any political subdivision of the United States for expense incurred in the last sickness or burial of such person.

(6) Payment of the benefits authorized by this paragraph will not be made unless claim therefor be received in the Veterans' Administration within one year from the date of death of the beneficiary or one year after July 13, 1943, whichever is later, and such claim is perfected by the submission of the necessary evidence within one year from the date of the request therefor by the Veterans' Administration: *Provided, however,* That a claim for compensation or pension by an apportionee, widow, child, or dependent parent shall be deemed to include claim for any accrued benefits. (Section 12, Pub. No. 144, 78th Cong.)

(b) A check received by a payee in payment of pension, compensation, or retirement pay shall, in the event of the death of the payee on or after the last day of the period covered by such check, become an asset of the estate of the deceased payee. (Section 12, Pub. No. 144, 78th Cong.)

(c) *Definitions.* For the purpose of paying accrued benefits under this paragraph the following definitions are for application:

(1) The term "spouse" shall mean the legal widow or widower of the veteran irrespective of the date of marriage.

(2) The term "child" is as defined in § 5.2514 (c), and includes an unmarried child who became helpless prior to attaining 18 years of age as well as an unmarried child over the age of eighteen but not over twenty-one years of age, who was pursuing a course of instruction within the meaning of § 5.2594 (b) at the time of the payee's death, provided only that upon the death of a child in receipt of pension or compensation, any accrued shall be payable to the surviving child or children of the veteran entitled to death pension or compensation.

(3) The term "dependent mother or father" is as defined in § 5.2514 (d) provided that the mother or father is dependent within the meaning of § 2.1057.

(d) (1) Where claim for the accrued amount due, under the laws in effect on or after March 20, 1933, was not filed prior to July 13, 1943, or where claim was filed prior to that date and disallowed either in whole or in part because of prior regulatory restrictions, a claim received prior to July 14, 1944, will be adjudicated under the provisions of this paragraph.

(2) A claim pending on July 13, 1943, will be considered a claim under this paragraph. (August 20, 1943) (Pub. No. 144, 78th Cong.)

[§§ 5.2662, 5.2664 and 5.2666 canceled August 20, 1943.]

FRANK T. HINES,
Administrator.

[F. R. Doc. 43-15244; Filed, September 17, 1943; 4:16 p. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office

Subchapter Z—Withdrawals, Restorations, Classifications, Land Transfers, and Executive Orders

[Public Land Order 157]

PART 298—PUBLIC LAND ORDERS

REVOKING EXECUTIVE ORDER NO. 8468 OF JULY 1, 1940; LOUISIANA

By virtue of the authority contained in the Act of June 25, 1910, c. 421, 36 Stat. 847, as amended by the Act of August 24, 1912, c. 369, 37 Stat. 497 (U.S.C., Title 43, secs. 141–142), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 8468 of July 1, 1940, withdrawing all public lands in the State of Louisiana from settlement, location, sale, or entry and reserving them for classification and in aid of legislation, is hereby revoked.

HAROLD L. ICKES,
Secretary of the Interior.

AUGUST 9, 1943.

[F. R. Doc. 43-15259; Filed, September 17, 1943; 4:43 p. m.]

[Public Land Order 164]

PART 298—PUBLIC LAND ORDERS

WASHINGTON

Withdrawing public lands for use of the War Department as aerial gunnery and bombing ranges.

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, and to section 3 of the act of June 17, 1902, 32 Stat. 388 (U.S.C., title 43, sec. 416), it is ordered as follows:

Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the War Department as aerial gunnery and bombing ranges:

WILLAMETTE MERIDIAN

T. 16 N., R. 23 E.,
Sec. 14, N½ and N½S½;
Sec. 24, NW¼.
T. 16 N., R. 24 E.,
Sec. 20, S½S½;
Sec. 22, NW¼NW¼, SW¼, S½SE¼, and NE¼SE¼;
Sec. 24, N½, SE¼SW¼, S½SE¼, and NE¼SE¼;
Sec. 20, W½SW¼;
Sec. 28, E½NE¼, SW¼NE¼, and S½NW¼.
T. 17 N., R. 29 E.,
Secs. 28 and 32.

The areas described aggregate 3,160 acres.

This order shall take precedence over, but shall not rescind or revoke, the withdrawal for reclamation purposes made by the order of April 26, 1937, of the Secretary of the Interior, so far as such order affects the above-described lands.

The jurisdiction granted by this order shall cease at the expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon, jurisdiction over the lands hereby reserved shall be vested in the Department of the Interior, and any other Department or agency of the Federal Government according to their respective interests then of record. The lands, however, shall remain withdrawn from appropriation as herein provided until otherwise ordered.

ABE FORTAS,
Acting Secretary of the Interior.

SEPTEMBER 6, 1943.

[F. R. Doc. 43-15260; Filed, September 17, 1943; 4:44 p. m.]

[Public Land Order 165]

PART 298—PUBLIC LAND ORDERS

WASHINGTON

Withdrawing public lands for use of the War Department for military purposes.

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the public lands within the following-described areas are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the War Department for military purposes:

WILLAMETTE MERIDIAN

T. 11 N., R. 28 E.,
sec. 2, lots 1 to 6, inclusive, S½NW¼, and SW¼;
Secs. 4, 6, 8, 10, 16, and 18;
Sec. 22, W½;
Secs. 28, 30, and 32.
T. 12 N., R. 28 E.,
Secs. 8, 18, 20, and 22;
Sec. 26, lots 2 to 5, inclusive, W½W½;
Secs. 28, 30, 32, and 34.

The areas described, including both public and non-public lands, aggregate 12,032.56 acres.

This order shall take precedence over, but shall not rescind or revoke, the withdrawal for classification and other purposes made by Executive Order No. 6910 of November 26, 1934, as amended, so far as such order affects the above-described lands.

The jurisdiction granted by this order shall cease at the expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon, jurisdiction over the lands hereby reserved shall be vested in the Department of the Interior, and any other Department or agency of the Federal Government according to their respective interests then of record. The lands, however, shall remain withdrawn from appropriation as herein provided until otherwise ordered.

ABE FORTAS,
Acting Secretary of the Interior.

SEPTEMBER 6, 1943.

[F. R. Doc. 43-15261; Filed, September 17, 1943; 4:44 p. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

Subchapter B—Carriers by Motor Vehicle

[Ex Parte MC-3, MC-4]

SAFETY EQUIPMENT ON MOTOR VEHICLES

At a session of the Interstate Commerce Commission, Division 5, held at its office in Washington, D. C., on the 13th day of September, 1943. Ex Parte No. MC-3: In the matter of need for establishing reasonable requirements to promote safety of operation of motor vehicles used in transporting property by private carriers. Ex parte No. MC-4: In the matter of qualifications of employees and safety of operation and equipment of common carriers and contract carriers by motor vehicle.

It appearing that the manufacture of fusees prescribed by § 194.3 (d) (9) (i) (*h*) (Rule 3.3491 (h) of the Motor Carrier Safety Regulations, Revised) requires the use of materials urgently needed for the prosecution of the war, particularly potassium perchlorate, without the use of which in conjunction with the other constituents the fusees will not be "red-burning", and that it has become and will continue to be increasingly difficult for manufacturers of fusees to obtain these critical materials; and

It further appearing that other less critical materials are available for use in the manufacture of fusees which materials, if used, would not appreciably affect the efficacy of fusees as warning signals except that such fusees would not be "red-burning"; and

It further appearing that § 194.3 (d) (9) (ii) (*b*) (Rule 3.3492 (b) of the Motor Carrier Safety Regulations, Revised) prescribing first-aid kits requires that the containers thereof be of sheet steel, which also is a critical material the distribution of which is so restricted that it has become and will continue to be increasingly difficult for manufacturers of those containers to obtain steel for such use; and

It further appearing that containers for first-aid kits can be made of other materials generally available in such manner as to be adequate for the purposes intended:

It is ordered, That pursuant to the authority of section 204 of the Interstate Commerce Act, as amended, the effectiveness of §§ 193.8 (b) (2), 194.3 (d) (9) (i) (*h*), and 194.3 (d) (9) (ii) (*b*) (Rules 2.082 (b), 3.3491 (h), and 3.3492 (b) of the Motor Carrier Safety Regulations, Revised) hereby is suspended until December 31, 1944; and

It is further ordered, That during the period of such suspension, the following §§ 193.8 (b) (2), 194.3 (d) (9) (i) (*h*) and 194.3 (d) (9) (ii) (*b*) (49 CFR Parts 193, 194; 1939 Supp.) shall be in effect in lieu of those suspended.

PART 193—DRIVING OF MOTOR VEHICLES

§ 193.8 *Emergency equipment must be in place.* * * *

(b) *On every bus.* * * *

(2) One first-aid kit as prescribed (see § 194.3 (d) (9) (ii) (*b*)). [Rule 2.082 (b) of Motor Carrier Safety Regulations, Revised.]

PART 194—NECESSARY PARTS AND ACCESSORIES

§ 194.3 *Equipment required on all motor vehicles (except in driveaway operations).* * * *

(d) *Miscellaneous parts and accessories on all vehicles.* * * *

(9) *Emergency parts and accessories required*—(i) *On every bus, truck or tractor there shall be.* * * *

(*h*) At least three fusees (if carrier elects to carry and use flares as warning signals); each fusee shall be made in accordance with specifications of the Bureau of Explosives, 30 Vesey Street, New York, N. Y., and so marked, and shall be capable of burning at least 15 minutes. [Rule 3.3491 (h) of Motor Carrier Safety Regulations, Revised.]

NOTE: Flares (pot torches), fusees, oil lanterns, or any signal produced by a flame, shall not be carried or used as warning signals for motor vehicles used in the transportation of inflammable liquids or inflammable compressed gases in cargo tanks; but in lieu of such flares and fusees, three red electric lanterns, or three red emergency reflector warning devices shall be carried. (See § 193.23 (b)—Rule 2.232 of Motor Carrier Safety Regulations, Revised.)

* * * * *

(ii) *On every bus there shall be.* * * *

(*b*) One first-aid kit, heavy-duty 10- or 12-unit type, contained in a case which shall be made of sheet steel, wood, fiber, or other durable material, the corners, cover, and closure of which shall, when the cover is in closed position, be reasonably dust and weather tight. If made of sheet steel the case shall be so designed and constructed that the cover will be capable of being opened to an angle of 90° to 100° with the case, and a substantial stop shall be provided at the angle of full opening, which stop shall not interfere with the smooth operation of the cover. If the case and/or cover are made of sheet steel, neither shall be of metal lighter than No. 20 U. S. gage (nominal) and the cover shall be attached to the case by means of at least two substantial hinges or by a continuous piano-type hinge. If the case is non-metallic, either a sliding or hinged cover may be provided. The dimensions of the case shall be such that it will contain and allow easily to be extracted at least the numbers and kinds of unit packages hereby required:

4-inch bandage compresses—1 package.
2-inch bandage compresses—1 package.
1-inch adhesive compresses—2 packages.
40-inch triangular bandage—1 package.
Burn ointment—1 package.
Ammonia inhalants—1 package.
Iodine applicator—1 package.
Wire splint—1 package.
Tourniquet and forceps—1 package.

Each unit package, with its contents, whether furnished in accordance with the above-prescribed minimum requirements as to numbers and kinds or in greater quantity, shall conform to the specifications therefor contained in Federal Specification GG-K-391 (November 6, 1941) and Emergency Alternate Federal Specification E-GG-K-391 (July 5, 1943), issued by Procurement Division, Treasury Department, Washington, D. C.[1] [Rule 3.3492 (b) of Motor Carrier Safety Regulations, Revised.]

It is further ordered, That this order shall be effective forthwith and shall continue in effect until December 31, 1944, unless sooner revoked or modified by order of the Commission; and

It is further ordered, That notice of this order be given to motor carriers and the general public by depositing a copy of it in the office of the Secretary of the Commission at Washington, D. C., and by filing with the Director, Division of the Federal Register.

(Sec. 204, 49 Stat. 546, 52 Stat. 1237, 54 Stat. 921, 56 Stat. 176; 49 U.S.C. 304)

By the Commission, Division 5.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 43-15271; Filed, September 18, 1943; 11:16 a. m.]

[1] These specifications may be obtained from the Superintendent of Documents, Washington, D. C., at a cost of five cents each.